

Court No. - 21

Case :- WRIT - C No. - 12405 of 2024

Petitioner :- Rajesh Yadav

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Satyendra Kumar Singh

Counsel for Respondent :- C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. Counsel for the petitioner is permitted to serve respondents No. 2 & 3 through their panel counsel within a week.

2. List as fresh on 6 May 2024.

Order Date :- 24.4.2024

Mukesh Kr.

(Kshitij Shailendra,J.) (Manoj Kumar Gupta,J.)

Court No. - 21

Case :- WRIT - C No. - 12405 of 2024

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. Learned counsel for respondent nos.2 and 3 seeks time to obtain instructions.
2. List as fresh on **22.05.2024**.
3. When the matter is listed next, name of Shri Udit Chandra shall be shown as counsel for respondent nos.2 and 3.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 6.5.2024

Ankit.

Court No. - 21

Case :- WRIT - C No. - 12405 of 2024

Petitioner :- Rajesh Yadav

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Satyendra Kumar Singh

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. Heard Sri Satyendra Kumar Singh, learned counsel for the petitioner and Sri Udit Chandra, learned counsel for the respondent-Electricity Department.
2. The prayer made in the instant petition is for quashing notice dated 29.11.2022 issued by respondent no. 3 and for restraining respondent no. 3 from taking any coercive measure against the petitioner in pursuance of the said notice.
3. Sri Udit Chandra, learned counsel for the respondent-Electricity Department, states that the impugned notice dated 29.11.2022 has been cancelled and fresh notice for making assessment has been issued on 29.2.2024 (Annexure-3). He submits that in case any reply is submitted by the petitioner in reply to notice dated 29.2.2024, the same would be taken into consideration while making final assessment.
4. In view of the aforesaid stand of the respondent-Electricity Department, we are of the opinion that the cause of action does not survive. We leave it open to the petitioner to file his reply in response to notice dated 29.2.2024 and in which event, respondent no. 3 will proceed further in the matter strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.
5. The petition stands disposed of accordingly.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 22.5.2024

Jaideep/-